



Topic: Writs of Assistance

NAME:

DATE:

LEARNING TARGET: 12. I can explain the 4 areas of Colonial Trade: Mercantilism, Navigation Acts, Triangular Trade, and Salutary Neglect.

Questions:

Writ of Assistance: The Writs of Assistance allowed British officials to search for smuggled goods aboard ships, in warehouses, and even private houses.

- Purpose
- Granted by
- Allowed
- No need for

Primary Source:

"It is enacted, 'That after the 20th of November, 1767, such Writs of Assistants to authorize and empower the Officers of His Majesty's Customs to enter and go into any House, Warehouse, Shop, Cellar or other Place, in the British Colonies or Plantations in America, to search for and seize prohibited or uncustomed Goods in the Manner directed by the said recited Acts, shall and may be granted by the Superior or Supreme Court of Justice having Jurisdiction within such Colony or Plantation respectively.'"

Respond to the Text: How would you feel if this applied today — if the police could search your house anytime?

James Otis (1725--783) a Massachusetts lawyer so firmly embraced the principle that "a man's house is his castle" that he resigned as his colony's Admiralty Court advocate general when pressed to defend the writs of assistance. Considering them a violation of "one of the most essential branches of English liberty," he served as attorney for a group of merchants challenging the writs. In a case heard by the Massachusetts Superior Court, Otis spoke for nearly five hours.

Source: <https://teachingamericanhistory.org/document/speech-against-writs-of-assistance/>

SUMMARY: Why did the idea that "a man's house is his castle" cause James Otis to oppose writs of assistance?

Says	Means	Matters
In the first place, the writ is universal, being directed "to all and singular Justices, Sheriffs, Constables, and all other officers and subjects"; so, that, in short, it is directed to every subject in the king's dominions. Everyone with this writ may be a tyrant; if this commission be legal, a tyrant in a legal manner also may control, imprison, or murder anyone within the realm.		
In the next place, it is perpetual; there is no return. A man is accountable to no person for his doings. Every man may reign secure in his petty tyranny, and spread terror and desolation around him.		
In the third place, a person with this writ, in the daytime, may enter all houses, shops, etc., at will, and command all to assist him. Fourthly, by this writ not only deputies, etc., but even their menial servants, are allowed to lord it over us.		
Now one of the most essential branches of English liberty is the freedom of one's house. A man's house is his castle; and while he is quiet, he is as well guarded as a prince in his castle. This writ, if it should be declared legal, would totally annihilate this privilege.		
Custom-house officers may enter our houses, when they please; we are commanded to permit their entry. Their menial servants may enter, may break locks, bars, and everything in their way; and whether they break through malice or revenge, no man, no court, can inquire. Bare suspicion without oath is sufficient.		

